

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
Donovan Bradley,

Plaintiffs

Summons

INDEX NO.

-against-

CITY OF NEW YORK; POLICE OFFICER Luis
Fernandez Sgt. Nocerino
(SH# 491), PO Jason Smith,
Det. Joseph McEvoy; and JOHN
and JANE DOE 1 through 10, individually
and in their official capacities the names
John and Jane Doe being fictitious,
as the true names are presently unknown),
-----X

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in
this action and to serve a copy of your answer, or, if the
complaint is not served with this summons, to serve a notice of
appearance on the Plaintiff's Attorney within 20 days after the
service of this summons, exclusive of the day of service (or within
30 days after the service is complete if this summons is not
personally delivered to you within the State of New York); and in
case of your failure to appear or answer, judgment will be taken
against you by default for the relief demanded herein.

Plaintiff designates KINGS County as the place of trial. The
basis of venue is residence of Plaintiffs.

Plaintiffs reside at: 490 Williams Avenue, Apt 4B, Brooklyn, N.Y.
11207

Defendants' address is: 100 Church Street, New York, N.Y. 10007

NOTICE: This action is to recover damages for injuries
to plaintiff caused by the defendant's intentional and
negligent actions. The relief sought is monetary damages.

Upon your failure to appear, judgment will be taken

against you by default for an amount to be determined, with interest and the costs of this action.

Dated: October 13, 2022

Robert Marinelli

ROBERT MARINELLI, ESQ.
305 Broadway-7th Floor
New York, N.Y. 10007
212-822-1247

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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Donovan Bradley,

Plaintiffs

COMPLAINT

INDEX NO.

-against-

CITY OF NEW YORK; POLICE OFFICER Luis
Fernandez, Sgt. Nocerino, PO Jason Smith,
Det. Joseph McEvoy, and JOHN
and JANE DOE 1 through 10, individually
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John and Jane Doe being fictitious,
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PLEASE TAKE NOTICE that plaintiffs, by their attorney, ROBERT
J. MARINELLI, alleges the following, upon information and belief:

Preliminary statement

1. This is an action for damages arising from the arrest and subsequent imprisonment and prosecution of plaintiff Donovan Bradley ("Bradley"), ("plaintiff") on October 2, 2019, without probable cause and in violation of their rights under state and federal law.
2. On October 2, 2019, POLICE OFFICER Luis Fernandez ("Fernandez"), Shield No. 22932; Sgt. Nocerino ("Nocerino") (SH# 491), PO Jason Smith ("Smith") (SH# 16580), Det. Joseph McEvoy ("McEvoy") (SH# 7393) and POLICE OFFICERS JOHN DOE 1 - 10 ("Does"), acting within

the scope of their employment and under the authority of the CITY OF NEW YORK ("CITY") and the NEW YORK CITY POLICE DEPARTMENT ("NYPD") falsely arrested, assaulted, battered plaintiff, used excessive force and made false allegations to the Kings County District Attorney's Office with respect to plaintiff.

3. Plaintiffs seek compensatory and punitive damages, attorneys' fees and costs with respect to the claims arising under federal law, and such other and further relief as the court deems just and proper.

Jurisdiction and Venue

4. The cause of action arose within Kings County, within the State of New York.
5. Plaintiffs are residents of Kings County.
6. The action was timely commenced, based in part, on the tolling provisions enacted by Governor Cuomo by Executive Order 202.6 et. Seq., which tolled the statute of limitations a total of 228 days, running from March 20, 2020 to November 3, 2020.

Parties

7. At all times hereinafter mentioned, plaintiffs are natural persons residing in Brooklyn, N.Y.
8. At all times hereinafter mentioned, defendants Fernandez, Nocerino, Smith, McEvoy and Does are police officers, employees and agents of the CITY, acting within the scope of his employment and under color of state law and are sued in their official and

individual capacities.

9. At all times hereinafter mentioned, defendant NYPD was an agency of the CITY.
10. At all times hereinafter mentioned, defendant CITY was a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

Statement of Facts

11. At approximately 3:46 p.m. on October 2, 2019, plaintiff was lawfully outside and in the vicinity of 913 Saratoga Avenue, Brooklyn, when he was approached by several New York City Police Officers, including defendants.
12. The defendants, stopped plaintiff without probable cause or reasonable suspicion to believe that he had committed any crimes or offenses.
13. Defendants unlawfully seized plaintiff, placed him in handcuffs and escorted plaintiff to the 73rd police precinct.
14. At no point did the officers observe plaintiff commit any crimes or offenses.
15. Once at the precinct, plaintiff was placed in a room and questioned by defendants.
16. The defendants told plaintiff that marijuana and a firearm were found in an alley adjacent to 913 Saratoga Avenue.
17. Plaintiff knows nothing about this contraband.

18. Defendants, including defendant Fernandez, falsely informed employees of the Kings County District Attorney's Office that they had observed plaintiff commit crimes and/or offenses.

19. Plaintiff was released at about midnight on the date of his arrest, October 2, 2019, without any criminal charges being pursued against him.

20. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was deprived of his liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, and damage to his reputation.

False Arrest
(Federal Claim)

21. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

22. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiffs without probable cause.

23. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

Malicious prosecution

(Federal Claim)

24. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

25. On October 2, 2019, defendants, pursuant to a conspiracy with other officers involved in Bradley's arrest, initiated a judicial

proceeding against Bradley, without probable cause and with malice, which terminated in plaintiff's favor, by attesting falsely under oath to the facts set forth in the Criminal Complaint.

26. The conduct of defendants was wanton, willful and reckless and in total disregard for the federal and state law as to warrant the imposition of punitive damages.

(Denial of the Right to a Fair Trial)

27. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

28. The individual defendants created false evidence against Plaintiffs.

29. The individual defendants forwarded false evidence to prosecutors in the Kings County District Attorney's office.

30. In creating false evidence against Plaintiffs, and in forwarding false information to prosecutors, the individual defendants violated Plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

31. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

Prayer for Relief

Wherefore, plaintiff demands judgment against defendants as follows:

- a) Compensatory damages;
- b) Punitive damages;
- c) Attorneys' fees and costs pursuant to 42 U.S.C. §1983;
- d) Interest, costs and disbursements;
- e) Other and further relief as the court deems proper/

A jury trial is hereby demanded.

Robert Marinelli

ROBERT J. MARINELLI, ESQ.

305 Broadway, 7th Floor

New York, N.Y. 10007

212-822-1427

New York, N.Y.

October 13, 2022